

25AVCV00523 25AVCV00523

County: los-angeles

Division: Civil Law and Motion

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Case Number: 25AVCV00523 Hearing Date: June 23, 2026 Dept: A14

SUPERIOR COURT OF THE STATE OF CALIFORNIA

COUNTY OF LOS ANGELES – NORTH DISTRICT

CRYSTALLYN ELIZABETH JONES, an individual, and CARLOS ALVARADO, an individual,

Plaintiffs,

v.

GENERAL MOTORS LLC, a Delaware Limited Liability Company; ANTELOPE VALLEY CHEVROLET, a business entity form unknown; and DOES 1 through 50, inclusive,

Defendants.

Case Number 25AVCV00523

[TENTATIVE]

STATEMENT OF DECISION

Date of Hearing:

June 23, 2026

Dept. A-14

Judge William H. Forman

I. Background

This is a lemon law action. Plaintiffs Crystallyn Elizabeth Jones and Carlos Alvarado (collectively "Plaintiffs") allege that on December 26, 2024, they purchased a 2025 Chevy Traverse (the "Vehicle") distributed by Defendant General Motors LLC ("Defendant"), that the Vehicle purchase included a warranty, that the Vehicle had engine defects which arose during the warranty period, and that Defendant failed to properly repair defects. As such, the Song-Beverly Act was violated.

On April 22, 2025, Plaintiffs filed their Complaint alleging four causes of action for violations of the Song-Beverly Act.

At this time, a settlement has been received (see 09/18/2025 Notice of Settlement) and a Cost Memorandum and Motion for Attorney's Fees and Costs have been filed.

No Opposition has been filed.

II. Legal Standard

Standard for Attorney's Fees – A prevailing party is entitled to recover costs, including attorneys' fees, as a matter of right. (Code Civ. Proc., §§ 1032(a)(4), 1032(b), 1033.5.)

The fee setting inquiry in California ordinarily begins with the "lodestar" method, i.e., the number of hours reasonably expended multiplied by the reasonable hourly rate. A computation of time spent on a case and the reasonable value of that time is fundamental to a determination of an appropriate attorneys' fee award. The lodestar figure may then be adjusted, based on consideration of factors specific to the case, in order to fix the fee at the fair market value for the legal services provided. (*Serrano v. Priest* (1977) 20 Cal.3d 25, 49.)¹ Such an approach anchors the trial court's analysis to an objective determination of the value of the attorney's services, ensuring that the amount awarded is not arbitrary. (*Id.* at 48, n.23.) After the trial court has performed the lodestar calculations, it shall consider whether the total award so calculated under all of the circumstances of the case is more than a reasonable amount and, if so, shall reduce the section 1717 award so that it is a reasonable figure.² (*PLCM Group v. Drexler* (2000) 22 Cal.4th 1084, 1095-96.)

The factors considered in determining the modification of the lodestar include the nature and difficulty of the litigation, the amount of money involved, the skill required and employed to handle the case, the attention given, the success or failure, and other circumstances in the case. (*EnPalm, LLC v. Teitler Family Trust* (2008) 162 Cal. App. 4th 770, 774 (emphasis in original).) A negative modifier was appropriate when duplicative work had been performed. (*Thayer v. Wells Fargo Bank, N.A.* (2001) 92 Cal.App.4th 819.)

"The reasonable hourly rate is that prevailing in the community for similar work." (*PLCM Group v. Drexler* (2000) 22 Cal.4th 1084, 1095.) "The experienced trial judge is the best judge of the value of professional services rendered in [her] court." (*Ibid.*) "A trial court assessing attorney fees begins with a touchstone or lodestar figure, based on the 'careful compilation of the time spent and reasonable hourly compensation of each attorney ... involved in the presentation of the case.'" (*Christian Research Institute v. Alnor* (2008) 165 Cal.App.4th 1315, 1321.) "The reasonableness of attorney fees is within the discretion of the trial court, to be determined from a consideration of such as the nature of the litigation, the complexity of the issues, the experience and expertise of counsel and the amount of time involved. The court may also consider whether the amount requested is based upon unnecessary or duplicative work." (*Wilkerson v. Sullivan* (2002) 99 Cal.App.4th 443, 448.)

III. Discussion

Application – Plaintiffs seek to recover attorney fees for the following individuals pursuant to the settlement agreement: (1) Christopher Urner, Esq., attorney, at a rate of \$525 per hour, (2) Jorge L. Acosta, attorney, at a rate of \$450 per hour, (3) Timam Khoubian, attorney, at a rate of \$375 per hour, and (4) Mary M. Zazueta, paralegal, at a rate of \$250 per hour. (Acosta Decl., Exh. A.)

Plaintiff argues they are the prevailing party in the action because Defendant made a settlement offer and Plaintiff is the party awarded monetary recovery. (Motion, pp. 4-5.) Plaintiff is deemed the prevailing party because Defendants offered a settlement agreement. (Acosta Decl., ¶ 28.) Defendant's settlement offer also provided for Plaintiff's attorney's fees, costs, and expenses. (Acosta Decl., ¶ 29.) Defendant has not filed an opposition to dispute Plaintiff's status as prevailing party. Thus, Plaintiffs are entitled to attorney's fees and costs.

Plaintiffs' support for their billing is a collection of superior court orders regarding billing for cases that Plaintiffs' counsel has previously litigated and were found to be appropriate. (Acosta Decl., ¶ 23.) Plaintiffs' counsel has also attached the United States Consumer Law Attorney Fee Survey Report for the years of 2017-2018 as support. (Acosta, Decl., Exh. C.) The court has considered the declaration in review of hourly rates. (Acosta Decl., ¶¶ 6, 8-11.) Defendant has not filed an opposition to dispute hourly rates for Plaintiffs' legal staff. The court finds that the hourly rates for the legal staff that performed work in this action are reasonable.

Plaintiff seeks a lodestar figure of \$17,580 ((8.3 hours x Urner's \$525 hourly rate = \$4,357.50) + (19.8 hours x Acosta's \$450 hourly rate = \$8,910) + (1.5 hours x Khoubian's \$375 hourly rate = \$562.50) + (15 hours x Zazueta's \$250 hourly rate = \$3,750)) for a total of 44.6 hours of work. (Acosta Decl., Exh. A.)

The court finds that the billing records show that Plaintiffs' counsel expended a reasonable number of hours on completed tasks. However, Plaintiffs' counsel requests fees for anticipated time spent reviewing Defendant's opposition to this motion and drafting a reply. Defendant has not filed an opposition to this motion. Thus, the court will not award requested fees of \$2,887.50 (5.5 hours x Urner's \$525 hourly rate) for estimated time not actually expended pursuant to section 1794(d).

The court finds that Plaintiffs' legal staff reasonably expended a total number of 39.1 hours to commence and prosecute this action and to prepare the pending motion. The court reduces requested fees for Christopher Urner, Esq. from \$4,357.50 to \$1,470 (2.8 hours x Urner's \$525 hourly rate). Thus, the court finds a lodestar figure of \$14,692.50 reasonable.

Plaintiffs seek costs in the amount of \$1,150.94. (Acosta Decl., ¶ 31.) Plaintiff seeks \$584.65 in filing and motion costs, \$150 in jury costs, \$103.26 in service costs, \$134.70 in electronic filing and service costs, \$85 in court appearance professional costs, and \$93.33 in smart ADR mediation services costs. (See Memorandum of Costs.) Defendant has not filed an opposition to dispute costs. The court finds Plaintiffs' requested costs are supported and reasonable.

Therefore, Plaintiffs are awarded attorney's fees in the amount of \$14,692.50 and costs in the amount of \$1,150.94.

Accordingly, Plaintiffs' Motion for Attorney's Fees and Costs is GRANTED.

IV. Conclusion

Plaintiffs Crystallyn Elizabeth Jones and Carlos Alvarado's Motion for Attorney's Fees and Costs is GRANTED.